

EXTRAORDINARY ISSUE

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LAHORE, SATURDAY, JULY 18, 1964

PROVINCIAL ASSEMBLY OF WEST PAKISTAN.
NOTIFICATION

The 18th July, 1964.

No. PAWP/Legis-(38)/64/197—The j-: West Pakistan Family Courts Bill, 1964, having been passed by the Provincial Assembly of West Pakistan on the 30th day of June, 1964, and assented to by the Governor of West Pakistan on the 14th day of July, 1961, is hereby published as an Act of the Provincial Legislature of West Pakistan

THE WEST PAKISTAN FAMILY COURTS ACT, 1964,

WEST PAKISTAN ACT No. XXXII- or 1964.

(First published, after having received the assent of the Governor of West Pakistan in the *Gazette of West Pakistan*, dated the 18th July, 1964).

AN

ACT

to make provision for the establishment of Family Courts.

WHEREAS it is expedient to make provision for the Preamble.
establishment of Family Courts for the expeditious settlement
and disposal of disputes relating to marriage
and family affairs and for matters connected therewith ;

It is hereby enacted as follows:—

11/4 1.. (1) This Act may be called the West Pakistan short, title.
extent and commencement.

Courts Act, 1964.

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(2)It extends to the whole of the Province ofw
Pakistan, except the Tribal Areas. est

(3)It shall come into force in such area or areas and
on such date or dates as Government may, by notification
in the Official Gazette, specify in this behalf.

Definit ions.

2. In this Act, unless the context otherwise requires,
the following expressions shall have the meanings hereby
respectively assigned to them , that is to say—

- (a) "Arbitration Council" and "Chairman" shall
have the meanings respectively assigned to
them in the Muslim Family Laws Ordinance,
1961 ;
- (b) "Family Court" means a Court constituted
under this Act ;
- (c) "Government" means the Government of
West Pakistan ;
- (d) "party" shall include any person whose presence
as such is considered necessary for a propier
decision of the dispute and whom the Family.
Court adds as a party to such dispute ;
- (d) "prescribed" means prescribed by rules made
under this Act.

3. Government shall establish one or more Family

Establish.
meet of
Family Co-
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Qualifica-
tions of
Judge.

4. No person shall be appointed as a Judge of ,as
Family Court unless he is or has been a District Judgeg
or necessary and appoint a Judge in each of such
Courts.

Courts in each District or at such other place as it nlaY d

Pia co of
sitting

J urifidietivn. 5. Subject to the provisions of the
Laws Ordinance, 1961, and the Conciliation Courts Olr'is,
name, 1961, the Family Courts shall have exclu^{sive}, jlters
diction to entertain, hear and adjudicate uPoil
specified in the Schedule.

In il biun
of suit-.

6. Subject to any general or special or—la its
Government in this behalf, a Family Court shall 11^o1 niaY
sittings at such plac'e or places within the districts as

be specified by the District Judge.

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7. (1) Every suit before a Family Court siter
instituted by the presentation of a plaint or in stitch
manner and in such Court as may be prescribed.

(2) The plaintiff shall contain all facts relating to the dispute and shall contain a Schedule giving the number of witnesses intended to be produced in support of the OA the names and addresses of the witnesses and a brief summary of the facts to which they would depose :

Provided that the parties may, with the permission of the Court, call any witness at any later stage, if the Court (onsiders such evidence expedient in the interests of justice.

(3) All documents which the plaintiff intends to rely upon in respect of his claim shall be appended to the plaint,

(4) The plaintiff shall be accompanied by as many duplicate copies thereof [including the Schedule and the lists of documents referred to in sub-section (3)], as there are defendants in the suit, for service upon the defendants.

8, (1) Within three days of the presentation of the lutionion plaint to a Family Court the plaintiff shall send to each t^o d^{efen} defendant by reuistered post, a copy of the plaint together /Id 11tS. 'ith a copy of the Schedule as mentioned in section 7(2) and copies of all documents mentioned in Bection 7(3).

(2) Save as may otherwise be prescribed, the Pⁿai^laintiff shall also, within the time specified in sub-section cause notice to be inserted in any two newspapers a^pproved by the Family Court of the fact of his having t^hedth "• 1

(¹) Within fifteen days of the service of notice 14 a new by registered post or the appearance of a notice 8. upon himb Ertietme%t.

app^{ear} T^sPaPer, whichever is earlier, the defendant shall in Court and file his written statement.

a^tach!) With the written statement the defendant shall

(a) Copies of the entire documentary evidence that

he wishes top roduce in the case ; and

(b) a list of the names and addresses of his witnesses

along with a precis of the

Witness is expected to give.

k^{fr}i^{red} Copies of the written statement and the documents evidenc
,Post 6' to in sub-section (2) shall be sent by registered e that
111 41g 6, defendant to the plaintiff within three days of his each
the Written statement :

filee a joint written statement, only one of

them shall send a copy of the written statement with the documents mentioned in sub-section (2).

(4) If the defendant fails to appear within the time specified in sub-section (1), the Family Court **may** proceed against him *ex parte*.

Pretrial 10. (1) As soon as may be, after the written state.
proceedin g. went has been filed, the Court shall fix a date for pre-trial hearing of the case and issue notices to the parties for attending the Court on the date so fixed.

(2) On the date so fixed, the Court shall examine the plaint, the written statement (if any) and the precis of evidence and documents filed by the parties and shall also, if it so deems fit, hear the parties and their Counsel.

(3) At the pre-trial, the Court shall ascertain the points at issue between the parties and attempt to effect a compromise or reconciliation between the parties, if this be possible.

(4) If no compromise or reconciliation is possible, the Court shall frame the issues iv the case and fix a date for evidence.

Recording 11. (1) On. the date fixed for recording of evidence,
or evidence. the Family Court shall examine the witnesses produced by the parties in such order as it deems fit.

(2) The Court shall not issue any summons for the appearance of any witness unless, within three daYs the framing of issues, any party intimates the Cow; that it desires a witness to be summoned through th Court and the Court is satisfied that it is not possible or practicable for such party to produce the witness.

(3) The witnesses shall give their evidence in they own words and no question shall beput to them ^{b_yE.g_li_k} party or any Counsel f party **by** ^pway of

o a exam; flat/10

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n Provi ded that the Court may, if it so clee,-

Put any question to any witness for the purpose °1. elu the

(4) The Family Court may permit **the eviden**^{ce °I} any witness to be given by means of an affidavit ^{all}
Provided that if the Court deems fit it ^{1:69:Ltio^l}
such witness for the ^{purpose of exax^{o 11-}}
in accordance with sub-section (3),

chief, cross-examination or re-examination:

TITE GAZ, OF WEST PAK. (EXTRY.), JULY 18, 1964 2431

0. (1) After the close of evidence of both sides, **Conclus ion** the **Faraily** Court shall make another effort to effect a **of trial.** **compromise** or reconciliation between the parties.

(2) If such compromise or reconciliation is not pose sible, the Family Court shall announce rfs judgement and give a decree.

13. **(1)** The Family Court shall pass a decree in Enforcement **Rich** form and in such manner as may be prescribed, o^{f d} and shall enter its particulars in the prescribed ieg,ister.

(2) If any money is paid or any property is delivered in the presence of the Family Court, in satisfaction of the decree, it shall enter the fact of payment and the delivery of property, as the case may be, in the aforesaid register.

(3) Where a decree relates to the payment of money and the decretal amount is not paid within the time **Specified** by the Court, the same shall, if the Court so directs, be recovered as arrears of land revenue, and on recovery shall he paid to the decree-holder.

(4) The decree shall be executed by the Court pass- ing it or by such other Civil Court as the District Judge may, by special orgeneral order, direct.

that (5) A Family Court may, if it so deems fit, direct be Paid an Y money to be paid under a decree passed by it in such instalments as it deems fit.

¹⁴ **(1)** Notwithstanding anything provided in Appeals. ¹³⁷ other law for the time being in force, a decision or a th:V.rei..passed by a Family Court shall be appealable to he -nigh Court only.

Pain' ⁽²⁾ No appeal shall lie from a decree passed by a Tamil Court--

(a) for dissolution of marriage, except in the case of dissolution for reasons specified in clause (d) of item (viii) of section 2 of the Dissolu- tion of Muslim Marriages Act, 1939;

(b) fordower not exceeding rupees one thousand;

^(c) for maintenance of rupees twenty-five - or less per month.

or p^erson to appear and give evidence, or to produce Zeify"

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Court to

¹⁵ (1) A **Family** Court may issue summons to se the production of any document •

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³rovided that—

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(a) no person who is exempt from personal appearance in a Court under sub-section (1) of section